

MUTUAL NON-DISCLOSURE AGREEMENT

Confidential — for the parties named below

This Mutual Non-Disclosure Agreement (this “**Agreement**”) is entered into as of _____ (the “**Effective Date**”) by and between:

Connor MacIvor, an individual conducting business in Santa Clarita, California, including through ConnorWithHonor and HonorElevate (“**MacIvor**”); and

_____, in their individual and professional capacity in connection with _____ (“**Counterparty**”).

Each is a “**Party**” and together the “**Parties**.”

1. PURPOSE

The Parties wish to explore a potential working relationship which may include joint educational presentations and webinars, marketing collaboration, lead generation and nurture systems, automation and technology services, and related business opportunities (the “**Purpose**”). In connection with the Purpose, each Party may disclose to the other information that is confidential and proprietary.

2. CONFIDENTIAL INFORMATION

“**Confidential Information**” means any non-public information disclosed by one Party (the “**Disclosing Party**”) to the other (the “**Receiving Party**”), in any form, whether oral, written, electronic, or visual, that is identified as confidential or that a reasonable person would understand to be confidential given its nature and the circumstances of disclosure. Confidential Information includes, without limitation: business strategies, plans and forecasts; marketing methods, funnels, campaigns, creative and advertising performance data; client, customer, borrower, seller and lead lists and associated data; pricing, fee structures, commission arrangements and financial information; software, systems, automations, workflows, prompts, models and configurations; technical know-how, processes and methodologies;

vendor, lender and partner relationships; and the existence, substance and content of discussions between the Parties.

3. MUTUAL OBLIGATIONS

Each Party may act as both a Disclosing Party and a Receiving Party. The Receiving Party shall:

1. hold the Disclosing Party's Confidential Information in strict confidence;
2. not disclose it to any third party without the Disclosing Party's prior written consent;
3. use it solely for the Purpose and for no other purpose, including no competitive use and no use for the benefit of any other client, partner, venture or engagement;
4. protect it using at least the same degree of care it applies to its own confidential information, and in no event less than reasonable care; and
5. limit access to those of its employees, contractors and professional advisors who have a genuine need to know for the Purpose and who are bound by confidentiality obligations at least as protective as those set out here.

3.1 Reciprocity, expressly stated. The Parties intend and agree that the obligations of this Agreement apply equally and identically in both directions. Without limiting the generality of the foregoing, **MacIvor shall not disclose, publish, repeat, present, teach, or otherwise share any proprietary idea, strategy, method, program, pricing, client or borrower information, or business plan disclosed to him by Counterparty with any third party**, and shall not use any such information for the benefit of any other client, partner, brokerage or venture, in each case without Counterparty's prior written consent. Counterparty is subject to the identical obligation with respect to MacIvor's Confidential Information.

4. NO REPLICATION OF DISCLOSED METHODS

The Parties acknowledge that a candid discussion of the Purpose requires MacIvor to explain not only *what* he can build but *how* he builds it, and that this know-how

has independent commercial value precisely because it is not generally known. Accordingly, Counterparty shall not, during the term of this Agreement and for **two (2) years** following the last disclosure: (a) use MacIvor's Confidential Information to build, implement, replicate or reproduce the systems, methods or solutions MacIvor disclosed; (b) direct, engage or enable any employee, contractor, agency or third party to do so on Counterparty's behalf using that information; or (c) disclose that information to any competitor of MacIvor. Nothing in this Section restricts Counterparty from operating its own business, from using knowledge or skills it possessed independently, or from engaging any provider it chooses using information not derived from MacIvor's Confidential Information.

5. EXCLUSIONS

Confidential Information does not include information that: (a) is or becomes publicly available other than through breach of this Agreement by the Receiving Party; (b) was rightfully known to the Receiving Party, without restriction, prior to disclosure; (c) is rightfully received from a third party without breach of any obligation of confidentiality; or (d) is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information.

6. COMPELLED DISCLOSURE

If the Receiving Party is required by law, regulation, subpoena, or court or regulatory order to disclose Confidential Information, it may do so, provided that it gives the Disclosing Party prompt written notice to the extent legally permitted so that the Disclosing Party may seek a protective order or other remedy, and that it discloses only the portion legally required.

7. REGULATORY COMPLIANCE

Nothing in this Agreement requires either Party to take any action that would violate applicable law, regulation, licensing obligation, or the policies of their respective employers, brokerages or institutions, including without limitation the Real Estate Settlement Procedures Act (RESPA), the Truth in Lending Act, fair lending and fair housing laws, applicable advertising and disclosure rules, and Department of Real Estate requirements. **This Agreement addresses confidentiality only. It does not create, evidence, or authorize any referral arrangement, fee arrangement, marketing services agreement, or exchange of anything of value between the Parties.** Any such

arrangement must be documented separately and reviewed for regulatory compliance by each Party's own counsel.

8. NO LICENSE; NO OBLIGATION

Nothing in this Agreement grants either Party any license or right, express or implied, in the other Party's Confidential Information, intellectual property, trademarks, systems or work product. Nothing in this Agreement obligates either Party to proceed with any transaction, engagement or business relationship.

9. RETURN OR DESTRUCTION

Upon the Disclosing Party's written request, the Receiving Party shall promptly return or destroy the Disclosing Party's Confidential Information and, if requested, certify such destruction in writing. The Receiving Party may retain copies contained in routine archival backups or required to be retained by law or regulation, which copies remain subject to this Agreement for so long as they are retained.

10. TERM AND SURVIVAL

This Agreement commences on the Effective Date and continues for **two (2) years**, unless earlier terminated by either Party upon thirty (30) days' prior written notice. The confidentiality obligations in this Agreement survive for **three (3) years** following the date of each disclosure. Information constituting a trade secret remains protected for so long as it qualifies as a trade secret under applicable law.

11. REMEDIES

Each Party acknowledges that unauthorized disclosure or use of Confidential Information may cause irreparable harm for which monetary damages would be an inadequate remedy, and agrees that the Disclosing Party is entitled to seek injunctive or other equitable relief in addition to all other remedies available at law or in equity.

12. GENERAL

This Agreement is governed by the laws of the State of California, without regard to its conflict of laws principles, and the Parties consent to venue in Los Angeles County, California. This Agreement constitutes the entire agreement between the Parties as to its subject matter and supersedes all prior discussions regarding

confidentiality. It may be amended only in a writing signed by both Parties. If any provision is held unenforceable, the remainder continues in full force. This Agreement may be executed in counterparts and by electronic signature, each of which is deemed an original.

The Parties have executed this Agreement as of the Effective Date.

Connor MacIvor

Counterparty — print name, title and company

Date

Date

Not legal advice. This document was prepared as a working template, not by an attorney, and has not been reviewed by counsel. Before you rely on it, and especially before any marketing arrangement, shared expense, or referral flow is put in place with a mortgage originator, have a California real estate attorney review both this agreement and the underlying arrangement for RESPA and DRE compliance.